Maple Street Community Center - Prime Contract (Excerpt)

Article 3 - Time

3.1 The Contractor shall achieve Substantial Completion within 180 calendar days from the Notice to Proceed.

3.2 Time is of the essence for all obligations under this Contract.

3.3 If the Contractor is delayed, the Contractor shall give written notice of delay within 7 days of the first occurrence of the delay event; failure to do so waives the claim for additional time.

Article 4 - Liquidated Damages

4.1 Liquidated damages of $1,500 per calendar day shall be assessed for each day Substantial Completion is delayed beyond the date required by Section 3.1.

Article 5 - Payment

5.1 The Owner shall retain retainage of 10% of each progress payment until Substantial Completion.

5.2 The Contractor shall pay each Subcontractor only when paid by the Owner, on a pay-when-paid basis, and the Contractor's obligation to pay is conditioned on receipt of payment from the Owner.

Article 6 - Warranty

6.1 The Contractor warrants all Work for a warranty period of 1 year from the date of Substantial Completion.

Article 7 - Order of Precedence

7.1 In the event of conflict among the Contract Documents, the order of precedence shall be: first the Contract, then the Specifications, then the Drawings.